

## 24STCV11757 24STCV11757

County: los-angeles

Division: Civil Law and Motion

Department: 516

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Case Number: 24STCV11757 Hearing Date: June 29, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: June 29, 2026

Case Name: Bateson v. America Complete

Home Service, Inc., et al.

Case

No.: 24STCV11757

Matter: Motion for Trial Preference

Moving

Party: Plaintiff Diane Bateson

Responding Party: Defendant Payless Heating & Air

Conditioning, Inc.

Tentative

Ruling: Plaintiff Diane Bateson's

motion is denied.

Plaintiff

Diane Bateson ("Plaintiff") filed this action against Defendants America Complete

Home Service, Inc., doing business as American Air Conditioning & Heating,

Payless Heating & Air Conditioning, Inc., erroneously sued as Payless Water

Heaters & Air Conditioning (“Defendant”), and Does 1 to 50. The First Amended Complaint (“FAC”) alleges seven causes of action for: (1) breach of contract; (2) breach of implied warranty of habitability; (3) breach of quiet enjoyment; (4) negligence; (5) negligent infliction of emotional distress; (6) nuisance; and (7) violation of Business and Professions Code section 17200, et seq.

Plaintiff

is 83 years old and moves for trial preference. Defendant opposes.

Legal Standard

Code of

Civil Procedure section 36, subdivision (a) provides, “A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court” finds that “[t]he party has a substantial interest in the action as a whole” and “[t]he health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.” (Code Civ. Proc., § 36, subd. (a).)

“A

consistent line of cases establish section 36 ‘grants a mandatory and absolute right to trial preference over all other civil matters lacking such a preference; the trial court ‘shall’ grant the preference and has no discretion to avoid the command of section 36[ ] in the interest of efficient management of the court's docket as a whole.” (Pabla v. Superior Court of Merced County (2023) 90 Cal.App.5th 599, 602.)

Analysis

Plaintiff

moves for trial preference due to her age and medical condition.

Preliminary

Matter

“An

affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of

any party. The affidavit is not admissible for any purpose other than a motion for preference under subdivision (a) of Section 36.” (Code Civ. Proc., § 36.5.)

While

Plaintiff’s Counsel (“Counsel”) has submitted a signed declaration in support of Plaintiff’s motion, as noted by Defendant, there are substantial discrepancies in the moving papers and declaration. The procedural history in the motion states:

On October 17, 2017, PLAINTIFF filed his complaint against DEFENDANT for negligence. On December 11, 2017, DEFENDANT entered his appearance in this action. A trial date was set for June 2, 2020, but was vacated due to the COVID-19 crisis. The parties have designated experts, conducted supplemental discovery, and discovery should be completed in its entirety in less than sixty (60) days.

(Mot., 4:18-22; see also Mot., 7:16.)

But Plaintiff’s Complaint was filed on May 9, 2024, not in 2017. Plaintiff’s moving papers and Counsel’s declaration repeatedly refer to non-party “Mr. Saunders,” and use of he/him pronouns. (See Mot., 5:11.) Additionally, Counsel’s declaration states:

6. Absent trial

preference, it is easily foreseeable that PLAINTIFF will not be able to adequately prosecute this action due to his advanced age and rapidly deteriorating medical condition. Put simply, given the Court’s docket, Mr. Saunders’ interests would be prejudiced if he is not afforded trial setting prejudice. Upon information and belief, should this case not come to trial very soon, Mr. Saunders will likely lack the physical capacity to speak at his trial. He also may not be able to enjoy the result of his anticipated verdict if preference is not granted.

7. I respectfully

submit that my client should be afforded a trial preference so he may have his “day in court.”

(Adjei Decl., ¶¶ 6-7.)

Because Counsel’s

declaration is unclear as to what paragraphs relate to Plaintiff versus Mr. Sanders, the Court will not consider Counsel's declaration.

Motion  
for Trial Preference

For  
the Court to grant a motion for trial preference, the Court must find two things: (1) that "[t]he party has a substantial interest in the action as a whole;" and (2) that "[t]he health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." (Code Civ. Proc., § 36, subd. (a).)

Because the  
Court will not consider Counsel's unclear declaration as addressed above, Christine Bateson's declaration falls short. Christine Bateson is Plaintiff's Power of Attorney ("POA"), and not Guardian ad Litem. POA's declaration does not elaborate as to how granting Plaintiff's motion is necessary to prevent prejudicing the party's interest in the litigation due to Plaintiff's physical condition. (See Bateson Decl.) POA states that Plaintiff requires "substantial daily assistance" regarding her physical needs. (POA Decl., ¶ 3.) While the Court is sympathetic to Plaintiff's health condition, Plaintiff has not supported her motion that she is entitled to trial preference.

Thus,  
the Court denies Plaintiff's motion.

Conclusion

Plaintiff  
Diane Bateson's motion for trial preference is denied.